

Surender vs State Of Delhi on 24 September, 2020

Author: Yogesh Khanna

Bench: Yogesh Khanna

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IN THE HIGH COURT OF DELHI AT NEW DELHI
BAIL APPLN. 2652/2020
SURENDER

Through : Mr.Mohit Mathur, Sr
Mr.Karnail Singh,
Advocate.

versus

STATE OF DELHI

Through : Mr.Amit Ahlawat, AP
SI Sneh Lata, PS
with complainant

CORAM:

HON'BLE MR. JUSTICE YOGESH KHANNA
ORDER

% 24.09.2020

1. The hearing has been conducted through Video Conferencing.
2. The allegations against the applicant are of committing rape with the prosecutrix. The applicant is the jeth of the prosecutrix and is residing at Third floor of House No.1920, Pijanji Village, Kotla Mubarakpur, New Delhi.
3. The prosecutrix was earlier residing with her husband on the first floor and whereas her parents-in-law are residing on the ground floor of the same house.
4. The prosecutrix was married to Manish, the younger brother of the petitioner/applicant on 28.01.2008. Two children were born from the wedlock but because of temperamental differences between husband and wife, this marriage could not succeed and resulted into various litigations.
5. It is submitted that a complaint under Sections 406/498A/34 IPC is still pending. The petition for divorce filed by her husband under Section 13(1)(1a) of Hindu Marriage Act on ground of cruelty is also pending.
6. Coming to the allegations made in the present case it is submitted by learned counsel for the petitioner/applicant that the prosecutrix talks of an incident dated 13.07.2020 when she had come to the house of her parents-in-law and there some quarrel took place. Her father-in-law had given a statement to the police on the same day when the police was called by dialling helpline number 100 and 112. The said statement is annexed on record, though the prosecutrix did not level allegation

before police on 13.07.2020 qua her molestation.

7. It was only on 21.07.2020, she filed a complaint with the DCP-South, which complaint was marked to PS Kotla Mubarakpur whereafter FIR bearing No.No.296/2020 under Sections 354/354-A/509/34 IPC was registered.

8. It is further submitted by learned senior counsel for the petitioner that on 04.08.2020, her statement under Section 164 Cr.P.C was recorded wherein she improved herself and levelled allegations of rape, against her jeth, committed a month earlier.

9. On 04.08.2020, her statement under Section 161 Cr.P.C. was also recorded wherein she levelled charges of rape committed by her jeth in the year 2019 and also on 28.05.2020. The reference is also made to the MLC report dated 05.08.2020 wherein she has levelled charges of rape only on 28.05.2020.

10. It is the submission of the learned senior counsel for the petitioner that the prosecutrix is improving upon her statements so much so that on 13.07.2020 if there was any molestation, she ought to have reported the same before the police on the same day itself. Rather she filed a complaint after about 8 to 9 days and that too of molestation but whereas in her statement under Section 164 Cr.P.C. she improved herself and alleged rape was committed upon her once but thereafter on the same day under Section 161 Cr.P.C., she said rape was committed on two occasions. He also pointed out in her statement recorded under Section 164 Cr.P.C, she stated that rape was committed a month back i.e. in the month of July or most probably end of June but whereas in the MLC and statement under Section 161 Cr.P.C. she says that rape was committed on 28.05.2020 and also in 2019, hence it is submitted not only there are contradictions and improvements in her statements besides delay in reporting the matter but it appears that such allegations are levelled by her because of various disputes she had with her husband.

11. I have heard learned APP for the State also and hence without giving any opinion on merits, it is directed the petitioner shall join the investigation with the IO as and when directed by the IO and in the event of his arrest he be admitted to bail on his executing a personal bond of Rs.50,000/- with one surety of the like amount to the satisfaction of the IO/Duty MM. The petitioner is also directed to provide his contact number/address to the SHO concerned.

12. The application stands disposed of in above terms.

13. Copy of this order be sent electronically to the learned Trial Court/ Investigation Officer for information and compliance.

YOGESH KHANNA, J.

SEPTEMBER 24, 2020 VLD